LINEAGE COLLECTIONS

SEAWINDS Finn & Louise LUX LIGHTING LINEAGE HOSPITALITY

P.O. Box 7159 - North Port, FL 34290 I Telephone (800) 876-7123 I orders@lineage-collections.com

Dear Customer,

Thank you for your interest in Lineage Collections, parent company to sub-brands of Sea Winds, Finn & Louise, Lux Lighting and Lineage Hospitality. We are excited about the prospect of starting a business relationship with your company. Attached to this letter are a couple of documents that we will need you to complete so that we can start working together.

The first is a **New Account Application**. This document will give us the correct billing name and company information to set you up in our system. It will also give us the information we need to establish an account on open terms, if desired. Please complete this document, sign it, and return as soon as possible. We will need this completed before we can ship your first order.

The second item is the **Terms of Sale and Credit**. We need you to review and sign this document.

We will also need your **Tax Resale Certificate** for all states that you are selling into. If you do not have a tax resale certificate for certain jurisdictions, you may be charged sales tax on purchases.

Sincerely,

Sea Winds Florida, LLC

NEW ACCOUNT APPLICATION & AGREEMENT

For account with:

Sea Winds Florida, LLC

P.O. Box 7159 - North Port, FL 34290 - Telephone (800) 876-7123

orders@lineage-collections.com – www.lineage-collections.com

General Customer Information

Customer Name: _____

Trade Name if Different: _____

Mailing/Bill to Address: _____

City: _____ State: _____ Zip Code _____

Ship to Address (if different): _____

City: _____ State: _____ Zip Code _____

Phone #: _____ Fax #: _____

Email Address: _____

Type of Business: Corporation ____ Partnership ____ Sole Proprietor _____ Other ____

Number of years in business: ____

Owner's Name: _____
Street Address: _____
City/State/Zip: _____

Do you desire open credit terms? Yes ___ No ___ If yes, please provide credit references below. We also accept prepayment by check or credit card.

Reference Name & Contact person: _____
Phone: _____

Address: _____

Fax or Email: _____

.

Reference Name & Contact person: _____
Phone: _____

Address: _____

Fax or Email: _____

Retail Sales Associates / Design Associates Contact Information:

As your partner, we believe one of the most valuable ways we can support your business is by keeping your RSAs and design associates well-informed about our products. If you're able to share a list of names and email addresses for your sales and design team, we'd be happy to provide them with the tools and product knowledge they need to confidently convert sales opportunities. Providing this information is optional, but without it, your team may miss out on important updates about product construction, functionality, and the stories that help drive sales.

If you already have a contact list prepared, feel free to send it directly and disregard the fields below.

First Name	Last Name	Email

TERMS OF SALE AND CREDIT

1. If a customer is requesting open terms, Sea Winds Florida, LLC ("Creditor") will make a determination if an open account is approved. Upon approval, Creditor agrees to extend credit under the terms listed below and will advise the Customer of the initial approved line of credit available.

2. If any charge or payment is not paid by the Customer within fifteen (15) days after its due date, Customer agrees to pay a service charge on the amount owing equal to one and one-half percent (1.5%) per month or the highest rate allowed under applicable law, whichever is lower. These charges begin accruing on the date due.

3. If any claims arise with respect to defects in quantity or quality, or as to any other matter, Creditor shall not be liable, if at all, unless customer shall make written claim to Creditor within seven (7) days after receipt of any shipment involved in such claim, and failure to present any such claim within that time will be considered a waiver of the claim. Any claims made by telephone shall be confirmed immediately in writing to Creditor.

4. If goods are shipped freight collect, or per instruction of buyer, buyer must file any claim for shortage, damage, or defect directly with carriers.

5. Any goods rejected by buyer must be kept in original condition and made available to seller or to its agent. No goods may be returned by buyer without prior approval of Creditor.

6. Any statement in a purchase order or similar document which is not expressly approved or acknowledged in writing by Creditor will not be considered as part of the agreement between the parties.

7. These terms and conditions of sale may not be modified unless agreed to in writing by Creditor.

8. Customer hereby authorizes Creditor to investigate Customer's credit report and to report Customer's performance under this transaction, or any other agreement between Creditor and Customer, to credit agencies.

9. Customer acknowledges that in the event of non-payment, its account may be assigned for collection. Customer waives any claim of jurisdiction or venue in the county or state of Customer's residence or place of business, and agrees that, should lawsuit be instituted, personal jurisdiction as well as venue will be exclusively in Hillsborough County, FL.

10. In the event that Sea Winds Florida, LLC institutes legal proceedings to collect any amount due and owing, then Customer will be responsible for any costs incurred in collecting such amount, including, but not limited to, reasonable attorney's fees and court costs incurred at both the trial and appellate levels.

11. Customer has read the "General Terms and Conditions" page(s) attached hereto and agrees to the Creditors' terms and policies outlined therein.

12. If any provision hereof is deemed invalid or unenforceable to any extent, the remainder of the terms hereof will not be affected thereby and will be enforced to the greatest extent permitted law.

_____ _____

Signature / Title for Customer Date

_____ _____

Signature / Title for Customer Date

General Terms & Conditions

ORDERS

Orders can be placed by phone, email or fax. When placing an order, please specify if you would like to use a specific freight carrier. If no freight carrier is specified, we will use the carrier we judge to be the best possible for the order. We do not hold orders in our warehouse for customers. Any order submitted will be fulfilled as soon as possible unless customer specifically states otherwise. All orders are acknowledged by email.

PRICES

All prices listed are quoted FOB our warehouse in Asheboro, NC and do not include freight charges to your location. Orders can be shipped freight collect or prepaid if you would like to access our rates.

SHIPPING

We can ship orders floor loaded or palletized and shrink wrapped. If utilizing our prepaid rates, orders will likely be floor loaded given our arrangements with various carriers. If you prefer to have orders palletized and utilize our prepaid rates, the freight rate will likely be higher but we will service your needs. When we send out a shipment, the freight carrier signs an acknowledgment that the pieces were in good condition when they were picked up. At that point, any problems with damages or shortages need to be handled between the customer and the freight carrier. When you receive a shipment, make sure you check the following:

- **Check your order for piece count**. Each order contains documentation detailing the number of pieces we shipped. You also need to use your packing list. If you are short any pieces it is your responsibility to **note it on the freight bill**. Call our office immediately and we will help you track down the missing pieces. If you find you are missing items after giving the freight carrier a clear receipt of the goods, call the freight company immediately. Sea Winds Florida, LLC will not be held responsible.

- **Check your order for damaged boxes.** If you receive a box that appears damaged, open it and inspect the item for damage. If the item is damaged you need to **REFUSE the item and notate it clearly on the freight bill.** Call our office immediately so we can send a replacement. If you find that an item is damaged after giving the freight carrier a clear receipt of the goods, call the freight company. Sea Winds Florida, LLC will not be held responsible.

- **Check your order for concealed damage or factory defects.** When you receive the order, check each item immediately for concealed damage or any possible factory defects. Contact our office within seven days of receipt and fill out the product warranty form. The item must be returned in the **original box** with no damage to the box in order to receive proper credit.

We will not be held responsible if you use a warehousing company to receive your goods and the above is not followed.

RETURNS

We will **not** accept returned goods under any circumstances without prior authorization. Merchandise returned without our consent will be refused and returned at your expense. Please call our office for proper authorization and documentation for returns.

If the item to be returned is due to concealed damage, it must be in the **original box with no damage to the box in order to be considered for credit**. Item must also be packed well to prevent further damage. We will not accept any item back that is not in the original box or authorized.

If the item is to be returned due to a factory defect, the item must be packaged well before returning to prevent damage in shipping. Items not packaged well may result in no credit being given. Call our office for authorization and further instruction.

If the wrong item was ordered, we will accept the item back within 7 days of receipt provided that it is still in the original box and the box is not damaged. Customer must pay the shipping charges to return the item to us and must also pay a 15% restocking fee. We will not accept any item back that is not authorized.

Please advise your warehouse and delivery personnel of the above policy.

TERMS

We accept the following methods of payment:

1) Open Account with Net 30 terms (subject to approval)
2) Prepayment by credit card
3) Prepayment by check. There will be a fee of $50.00 for any checks that are returned by the bank

AVAILABILITY

We reserve the right to limit distribution of individual product lines or items within a product line in certain geographic areas.